

Where party has an adequate remedy at law he may not resort to court of equity for injunctive relief. (*North Side Property Owners' Assn. v. Hillside Memorial Park* (1945, Cal App) 70 Cal App 2d 609.)

Here, the only harm that plaintiffs are seeking to prevent is the loss of the subject RV at a sale or auction. Plaintiffs claim that defendants took the RV through fraud, undue influence, and financial elder abuse, as they took advantage of Carol's diminished mental capacity to persuade her to sell them the RV for less than it is worth, and then failed to pay her as promised.

Yet such allegations do not show that plaintiffs will suffer irreparable harm, as it appears that plaintiffs can be adequately compensated for the loss of the RV through money damages. In other words, plaintiffs have a plain, speedy, and adequate remedy at law, as they can calculate their damages based on the value of the RV. Plaintiffs have not alleged any facts showing that the RV is so unique or valuable that money damages would not be adequate to compensate them for its loss. Also, it appears that plaintiffs are alleging that defendants breached the contract with Carol by failing to pay her for the RV. Injunctions will not issue to prevent a breach of contract, or where money damages will adequately compensate the plaintiffs for their loss. (Code Civ. Proc., § 526; *West Coast Construction Co. v. Oceano Sanitary Dist.*, *supra*, 17 Cal.App.3d at p. 700.) Therefore, the court intends to deny the application for a temporary restraining order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: **Sanchez v. General Motors LLC**
Superior Court Case No. 24CECG04136

Hearing Date: June 30, 2026 (Dept. 501)

Motion: By Plaintiff to Tax Costs

Tentative Ruling:

To grant in part and tax costs in the sum of \$95.90, reducing defendant General Motors LLC's ("GM") recoverable costs to \$935. (Cal. Rules of Court, rule 3.1700(b), Code Civ. Proc., § 1033.5.)

Explanation:

Under Code of Civil Procedure section 1032, subdivision (b), "a prevailing party is entitled as a matter of right to recover costs in any proceeding."

The losing party may dispute any or all of the items in the prevailing party's costs memorandum by a motion to strike or tax costs. (See Cal. Rules of Court, Rule 3.1700(b).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.

(*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

Both parties are frustratingly vague and sloppy in their filings in connection with this motion. Defendant GM filed a Memorandum of Costs that does not include the worksheet, and neither party includes the worksheet with their filings, making it more difficult and time-consuming to evaluate this motion than it should be. And GM's memorandum of costs places items of costs in the wrong categories. GM does not dispute that its costs are in the wrong categories, but doesn't acknowledge it either. Plaintiff's motion to tax costs does not comply with Rules of Court, rule 3.1700(b)(2), which provides that "the motion to strike or tax costs **must** refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Emphasis added.) Plaintiff's notice of motion never specifies what items or in what amount he seeks to tax GM's costs. The motion (including the points and authorities) never identifies any specific item numbers.

If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Automobile Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Bender v. County of Los Angeles*

